

AlbaDrive Legal Analysis: Adding In-App Payment Processing to a Peer-to-Peer Carpooling Platform

Jurisdiction-by-Jurisdiction Analysis Across 10 Countries

Scope note: This desk-research document maps the regulatory terrain across Switzerland, Germany, France, Italy, Austria, Belgium, Albania, Kosovo, North Macedonia, and Serbia. It is intended to inform decisions about engaging local counsel — not to substitute for legal advice. Information is current as of April 2026. Legislation in this space has moved rapidly since 2020 (DSA, DAC7, ViDA, post-Uber rulings, PSD2 implementation variants). Where information is dated or pending, this is flagged explicitly.

Executive Summary

The core legal question for AlbaDrive is whether adding in-app payment processing transforms the platform from a **pure intermediary** (subject only to information-society-services rules) into either a **commercial transport operator** (subject to transport licensing) or a **regulated payment intermediary** (subject to payment services law). The research shows that neither transformation is automatic — but both are possible, and the triggering conditions differ by jurisdiction.

The BlaBlaCar precedent is instructive: the company has successfully defended its classification as an information-society service in multiple jurisdictions by (i) strictly capping driver prices at cost-sharing levels, (ii) routing payment flows through a licensed payment service provider (Stripe) using a Connect architecture that prevents the platform from "holding" funds, (iii) charging its commission only to passengers as a service fee (not to drivers as a percentage of their earnings), and (iv) maintaining T&Cs that make the driver — not the platform — the principal in the transport contract. A small startup like AlbaDrive can follow this architecture but must be careful about jurisdiction-specific deviations.

Part I: Country-by-Country Analysis

1. FRANCE

1.1 Carpooling vs. Paid Transport Boundary

France has the most developed statutory definition of carpooling in Europe. Article L3132-1 of the Code des transports (introduced by Loi n° 2015-992 du 17 août 2015 relative à la transition énergétique, modified by Loi d'orientation des mobilités / LOM of 24 December 2019) defines *covoiturage* as:^{[1][2]}

"l'utilisation en commun d'un véhicule terrestre à moteur par un conducteur et un ou plusieurs passagers, effectuée à titre non onéreux, excepté le partage des frais, dans le cadre d'un déplacement que le conducteur effectue pour son propre compte. Leur mise en relation, à cette fin, peut être effectuée à titre onéreux."

Key elements: (1) the driver makes the trip *for their own account* (not on demand); (2) the financial consideration is limited to *cost-sharing only* — no profit; (3) platform intermediation *may itself be remunerated* (this is the legal basis for BlaBlaCar's service fee).

The Ministry of Ecological Transition's official guidance recommends a maximum price of 0.20 €/km per passenger, derived from one-third of the fiscal mileage scale (*barème kilométrique*) which stands at approximately 0.661 €/km for a typical vehicle as of 2025. This is a recommendation, not a hard statutory cap, but exceeding it risks classification as professional transport. France distinguishes *covoiturage* from VTC (voiture de transport avec chauffeur) regulated under Loi Thévenoud (2014) and taxi services under Article L3121-1 du Code des transports.^[^3]

Court cases: No French court has ruled specifically on BlaBlaCar's classification in France. The landmark rulings are Spanish (see §1.6). The French legal framework was drafted *with BlaBlaCar's model in mind* following government consultations. However, the UberPop saga is instructive: the Court of Cassation in a ruling of 9 April 2025 (n° 23-22.122) confirmed that UberPop-style services constituted unfair competition against taxi drivers, and that "an unlawful competitive advantage" (avoiding mandatory regulatory costs) can be assessed as the basis for damages even absent direct financial proof from the claimant. This ruling firmly distinguishes cost-sharing carpooling (lawful) from profit-generating on-demand transport (unlawful).^[^4]

1.2 Platform Liability — Current Cash Operation

Under the E-Commerce Directive 2000/31/EC (now overlaid by the Digital Services Act, Regulation (EU) 2022/2065, fully applicable as of 17 February 2024), a pure matchmaking platform qualifies as an **information society service** and benefits from the hosting-provider liability exemption (Article 6 DSA), meaning it is not liable for user-generated content or user conduct unless it has actual knowledge of illegality and fails to act.^{[5][6]}

The key DSA obligations for a small platform (under 45 million monthly active EU users — not a VLOP):

- Publish T&Cs that are plain-language, legally compliant, and specify content-moderation policies
- Designate a single point of contact for EU authorities and users
- Provide a notice-and-action mechanism for illegal content
- Annual transparency reporting (if over threshold; most startups exempt)
- French consumer protection law (Code de la consommation, Art. L111-7 on platform transparency, introduced by Loi pour une République numérique 2016) requires disclosure of the economic relationship between the platform and listed service providers

Duty of care for a pure matchmaking platform is **low but not zero**: the platform must not actively facilitate illegal acts, should apply basic identity verification, and should maintain accessible T&Cs and dispute channels. No legal obligation to verify insurance or driving licences *at the matchmaking stage* exists under French law for a non-commercial platform — though doing so is strongly advisable as a practical risk-management measure.

1.3 What Changes When Payments Are Processed

Transport classification: BlaBlaCar's own T&Cs and the French statutory framework make clear that the platform's intermediation *may* be remunerated without changing the driver's legal status, provided the driver's receipts do not exceed their costs. Processing payments through the platform does not *per se* reclassify it as a transport operator. The BlaBlaCar model explicitly demonstrates this: BlaBlaCar processes all payments via Stripe, charges a 16–20% service fee to passengers, and has not been required to hold a VTC or taxi license in France.^{[2][7]}

PSD2 / Payment regulation: Directive (EU) 2015/2366 (PSD2), transposed in France by Ordonnance n° 2017-1252 and the Code monétaire et financier Arts. L521-1 et seq., applies when a platform collects and transmits funds between buyers and sellers. If AlbaDrive uses **Stripe Connect** in the recommended architecture (payment flows directly between passenger and driver via Stripe's escrow, platform never "holds" funds), the platform does not require its own Payment Institution license. Stripe Payments Europe Ltd (STEL), licensed as an EMI in Ireland and passported across the EEA, bears the PSD2 compliance burden. The French regulator ACPR has specifically engaged with BlaBlaCar and Stripe on this architecture.^{[8][9][10]}

Commission vs. zero-margin: Taking *any* commission on the platform side changes nothing with respect to transport classification, provided (a) the driver's share stays within cost-sharing limits and (b) the commission flows from the passenger's total payment (not from the driver's proceeds). BlaBlaCar charges passengers a booking fee added *on top of* the driver's requested price — this is the legally safest structure.^[^7]

1.4 Insurance

Under Articles L211-1 and L211-2 of the French Insurance Code and the official guidance from service-public.fr, **mandatory third-party civil liability insurance** (assurance responsabilité civile) covers all passengers in a carpooling vehicle, provided the transport is non-commercial cost-sharing. Cost-sharing does not constitute "professional use" that would trigger a commercial exclusion. BlaBlaCar confirmed in 2020 that passengers are covered by the driver's existing mandatory RCA insurance, and added a supplementary AXA product (BlaBlaSure/AXA) providing additional coverage at no extra charge to members — covering stranded-passenger guarantees, roadside assistance, and enhanced damage scenarios.^{[11][12][13]}

Platform-processed payments and insurance: There is no published French insurer guidance explicitly stating that platform-mediated payment processing voids standard auto insurance. The critical variable remains whether the *trip* is commercial (profit-generating for the driver) or cost-sharing. Assuming the price ceiling is respected, insurance coverage is maintained regardless of how payment is collected (cash vs. digital). Insurers may add exclusions if they discover systematic commercial use — this is a contractual rather than statutory question.

1.5 Tax Obligations

Under French tax law as interpreted by the *Direction générale des finances publiques*, a driver's income from carpooling is **not taxable** if three conditions are met:^[^2]

1. The driver makes the trip for their own account

2. The price offered to passengers does not exceed total costs incurred

3. The driver retains their *pro-rata* share of costs (i.e. does not recover 100% of costs from passengers)

There is no statutory monetary threshold below which reporting is automatically exempt. Compliance rests on the cost-sharing logic. Where these conditions are met, no income declaration is required. If they are not (driver profit), income is taxable as BIC or occasional income (Article 92 CGI).

DAC7 (Council Directive (EU) 2021/514): Applies from 1 January 2023, first reporting deadline 31 January 2024. AlbaDrive, as a digital platform facilitating "relevant commercial activities" (passenger transport is a qualifying activity under DAC7 Annex V), must report to the French tax administration (*Direction générale des finances publiques*) data on *reportable sellers* (drivers earning above the threshold). The de minimis exemption covers sellers with fewer than 30 sales AND below €2,000 total consideration per year. Drivers above this threshold (and all French-resident drivers by default) must be reported: name, address, TIN, bank account, and ride earnings. Platform must implement due-diligence procedures to collect and verify this data. Failure to comply carries administrative penalties. *This obligation applies regardless of whether the platform processes payments — but is practically easier to discharge if payment data flows through the platform.*^{[14][15][16]}

VAT: Platform service fees are subject to French VAT at 20%. The driver's cost-sharing payments are generally not VAT-taxable (the driver is not a "taxable person" under EU VAT Directive Art. 9 if acting below the business threshold). Cross-border rides (e.g. Paris → Geneva) require pro-rata VAT allocation by distance in each jurisdiction — see §9 for cross-border specifics.^[17]

ViDA (VAT in the Digital Age): The ViDA package was formally adopted 11 March 2025 and published 25 March 2025. A key provision (Council Directive (EU) 2025/516) introduces the "deemed supplier" rule for passenger transport platforms, making the platform liable to collect and remit VAT when the underlying service provider (driver) does not charge VAT. This rule applies from 1 January 2030 (with optional early application from 1 July 2028 for Member States). This is a medium-term watch item for AlbaDrive.^{[18][19][20][21]}

1.6 BlaBlaCar Precedent in France

BlaBlaCar (legal entity: Comuto SA, a French SAS headquartered at 84 avenue de la République, Paris 75011) has its primary legal registration in France and operates its carpooling platform under French law. The statutory carpooling definition in L3132-1 was effectively co-developed with BlaBlaCar's lobbying input during the LTE 2015 legislation. France has been BlaBlaCar's most legally hospitable jurisdiction.^[22]

The major court battles were in Spain, not France. In Spain, the Madrid Commercial Court (Juzgado Mercantil nº 2 de Madrid, Sentencia 30/2017, 2 February 2017) dismissed a lawsuit by Confibus (Spanish bus confederation) ruling that BlaBlaCar "realiza una actividad propia de la sociedad de la información" and does not compete with professional bus services. This was confirmed by the Madrid Provincial Appellate Court in 2020. These rulings are the most cited precedents for BlaBlaCar's classification across Europe.^{[23][24][25][26]}

France has no equivalent BlaBlaCar-specific court ruling because no serious legal challenge has been mounted. The French legislative framework effectively "legalized" the model.

1.7 KYC/AML

Under the 6th AML Directive (AMLD6, Directive (EU) 2018/1673) and the forthcoming EU Anti-Money Laundering Regulation (AMLR, expected July 2027), carpooling platforms that do not themselves hold or transmit funds are **not "obliged entities"** under AML law. The obligation falls on Stripe as the payment service provider. AlbaDrive has no direct AML/KYC obligation in France under the current framework, but must provide Stripe with sufficient data to enable Stripe to discharge its obligations. Stripe Connect's built-in KYC (identity verification for connected accounts receiving payouts) satisfies the upstream obligation.^[27]

Note on AMLR 2027: The new AMLR replaces national AML directives with a directly applicable EU regulation. Obligated entities include payment institutions and electronic money institutions — which Stripe is — but not platforms that merely facilitate matching. However, if AlbaDrive were ever to hold funds (even briefly), this classification could change.

1.8 Consumer Protection / Dispute Resolution

The DSA requires all platforms to have accessible internal complaint mechanisms. French consumer protection law (Code de la consommation) applies to B2C contracts. For carpooling matchmaking:^[28]

- Art. L111-7 Code de la consommation: mandatory disclosure of whether listings are from individuals or professionals
- Art. L211-15: right of withdrawal does not apply to transport services booked for a specific date

- Chargebacks: Stripe handles chargeback disputes for payment card transactions under Visa/Mastercard rules. The platform should define a clear cancellation/no-show policy (BlaBlaCar's model: if passenger cancels >24h before, service fee is retained; if driver cancels, full refund including service fee).^[^7]
- Platform is **not liable for the trip itself** (the transport contract is between driver and passenger) *as long as* the platform does not misrepresent its role and maintains adequate T&Cs

1.9 Data Protection

GDPR (Regulation (EU) 2016/679) applies fully. Adding payment processing expands the categories of personal data processed (bank account details, transaction history). Specific obligations:

- Legal basis: contract performance (Art. 6(1)(b)) for payment data; legitimate interest or consent for marketing
- Data minimisation: collect only what Stripe requires for payouts and what DAC7 reporting requires
- PCI-DSS: by using Stripe's hosted payment page (Stripe Elements or Checkout), card data never touches AlbaDrive's servers, reducing PCI scope to SAQ-A (lowest tier).^[^28]
- Data residency: GDPR does not mandate EU data storage, but restricts transfers outside EEA without adequate safeguards (Art. 46 SCCs). Stripe's EU data processing is covered by SCCs.^[^29]
- A DPO is required if processing data at large scale as core activity. For a startup, this threshold is unlikely met initially.

2. GERMANY

2.1 Carpooling vs. Paid Transport Boundary

Germany regulates commercial passenger transport under the *Personenbeförderungsgesetz* (PBefG), last substantially amended 1 August 2021 to accommodate new mobility forms. The key provision is § 1 Abs. 2 PBefG, which explicitly exempts from the entire Act arrangements where:^[^30]

"das Gesamtentgelt die Betriebskosten der Fahrt nicht übersteigt" — the total remuneration paid does not exceed the *operating costs* of the trip.

"Operating costs" (*Betriebskosten*) means: fuel, oil, tyre wear. It does **not** include fixed costs such as insurance premiums, vehicle tax, depreciation, or parking. This creates a **more restrictive ceiling** than France: French drivers can share all vehicle costs including insurance and depreciation; German drivers can only recover variable operating costs. BlaBlaCar Germany publishes a price recommendation of approximately 5 € per 100 km, enforces a 50% upward/downward tolerance, and explicitly states this ceiling exists because "der Fahrer laut Gesetz ohne Gewerbeerlaubnis keinen Gewinn erwirtschaften darf."^{[31][32][^33]}

Under § 46 PBefG (introduced by the 2021 reform), "gebündelter Bedarfsverkehr" (pooled on-demand transport) is now a licensed category — but this applies to commercial operators, not private carpoolers.^[^30]

No specific court ruling has tested BlaBlaCar in Germany. Frankfurt Landgericht rulings banning UberPOP (2014) explicitly distinguished UberPOP (profit-generating, unlicensed commercial transport) from Mitfahrgelegenheit platforms like BlaBlaCar (cost-sharing, lawful). BlaBlaCar acquired [Mitfahrgelegenheit.de](https://mitfahrgelegenheit.de) and [Mitfahrzentrale.de](https://mitfahrzentrale.de) in 2015 and became the dominant market player.^{[34][35]}

2.2–2.3 Platform Status & Payment Processing

Same DSA analysis as France applies. BaFin (Bundesanstalt für Finanzdienstleistungsaufsicht) supervises PSD2 compliance in Germany. PSD2 was transposed through the *Zahlungsdiensteaufsichtsgesetz* (ZAG) (as amended 2018). Stripe's passporting from Ireland covers Germany under PSD2 freedom of services. Using Stripe Connect, AlbaDrive does not hold funds and does not require a ZAG license.^[^8]

Commission question: The German legal analysis is the same as France — a commission on top of the driver's cost-sharing price does not trigger transport licensing, provided the *driver's* net receipts stay within Betriebskosten. However, if the platform's fee structure effectively enables drivers to receive more than Betriebskosten (because the commission is charged to the passenger), the *driver* is the one at risk of violating § 1 Abs. 2 PBefG, not the platform. Clear T&Cs restricting driver pricing are essential.

2.4 Insurance

German auto insurance (mandatory under *Pflichtversicherungsgesetz / PflVG*) covers passengers in cost-sharing carpooling (*Mitfahrgelegenheit*) because the driver does not act commercially. Insurers (ADAC, AXA, etc.) generally confirm that normal *Kfz-Haftpflicht* and *Kasko* cover carpooling passengers provided no commercial operation. BlaBlaCar's price-cap enforcement is partly designed to maintain this coverage. There is no specific published German insurer guidance on platform-mediated payment processing; the legal question is whether the *trip* is commercial, not how the cost-sharing payment is technically collected.^[36]

2.5 Tax

German tax law: carpooling cost-sharing is treated as tax-free expense reimbursement under § 3 Nr. 13 or the analogous income-tax exception for shared costs, provided the driver does not earn a profit. No specific threshold exists; the exemption is based on cost-sharing logic. DAC7 is transposed in Germany through the *Plattformen-Steuertransparenzgesetz (PStTG)*, in force from 1 January 2023. AlbaDrive must report German-resident drivers earning above €2,000/year or completing more than 30 rides to the *Bundeszentralamt für Steuern*. German VAT (19%) applies to the platform's service fee. Driver cost-sharing is not VAT-taxable.^[14]

2.6–2.10

BlaBlaCar regulatory status in Germany: **intermediary / information society service**. No German transport authority has challenged this classification. The ÖAMTC-like organisation in Germany (ADAC) has a co-branding partnership with [fahrgemeinschaft.de](https://www.fahrgemeinschaft.de), which itself confirms the legal legitimacy of the model. GDPR and PCF-DSS apply identically to France. No specific data residency requirements beyond GDPR.

3. SWITZERLAND

3.1 Carpooling vs. Paid Transport Boundary

Switzerland is not an EU member and has its own regulatory framework. The federal *Personenbeförderungsgesetz (PBG)* of 20 March 2009 (SR 745.1, effective 1 January 2010) regulates "regelmässige und gewerbmässige Personenbeförderung" — regular and commercial passenger transport. The key term is "gewerbmässig" (commercial/professional). Private, non-commercial, non-regular carpooling is not regulated by PBG. Switzerland also regulates taxis at cantonal level (each of the 26 cantons may have different taxi ordinances).^[37]

A 2020 ZHAW study commissioned by ASTRA (Federal Roads Office) explicitly classifies carpooling/ridesharing platforms as distinct from commercial ridehailing, noting the difference is that "die Fahrer das System nicht primär als Einnahmequelle nutzen" (drivers do not use the system primarily as income source). Switzerland has no statutory cost ceiling for carpooling equivalent to France's barème kilométrique, but the "commercial" threshold follows the principle that the driver must not profit beyond covering their costs. Uber was subject to court proceedings in several Swiss cantons (Geneva, Zurich) from 2017 onwards regarding whether its drivers are employees and whether UberPop drivers required a taxilicence; these are distinguishable from carpooling platforms.^[38]

3.2 Platform Status

Switzerland's Federal Act on Services in the Information Society (*Bundesgesetz über den elektronischen Geschäftsverkehr*, SR 943.1, effectively the Swiss equivalent of the e-Commerce Directive) and the DSA (which does not directly apply in Switzerland) inform the Swiss legal framework for platform liability. Swiss private law (Code of Obligations) governs the matchmaking contract between AlbaDrive and its users. As a pure matchmaking platform for private cost-sharing, AlbaDrive would be classified as a broker / agent under Swiss CO art. 412 ff.

3.3 Payment Processing in Switzerland

Switzerland has no PSD2 equivalent. Payment services regulation in Switzerland is governed by:

- Anti-Money Laundering Act (AMLA / GwG), SR 955.0 — requires SRO membership for financial intermediaries
- Banking Act (BA / BankG), SR 952.0 — triggers banking license if public deposits are accepted
- FinTech Bewilligung (Art. 1b BankG) — new license for fintechs accepting up to CHF 100m in public deposits^[39]
^[40]

The critical analysis: If AlbaDrive Switzerland uses Stripe (which has EU passporting under PSD2/EMI), **Stripe does not have a Swiss banking or fintech license**. Stripe's EU EMI license is not automatically valid in Switzerland as Switzerland is outside the EEA. This is a significant Switzerland-specific risk. In practice, Stripe processes Swiss

franc payments for many Swiss merchants using contractual agreements, but this operates in a regulatory grey zone. Switzerland's FINMA regulates Stripe under a limited carve-out for foreign payment operators. Technically, the proper Swiss route is:

1. AlbaDrive uses Stripe (commercial practice, widely done, but not strictly aligned with Swiss financial intermediary rules unless Stripe has a bilateral arrangement with FINMA)
2. AlbaDrive itself joins a FINMA-recognized SRO (Self-Regulatory Organisation) if it acts as a payment intermediary holding or passing funds — this is required under AMLA if the platform is a *professional financial intermediary*^{[41][39]}

For a startup at low scale, the practical risk of SRO non-compliance is low but real: fines and cease-and-desist from FINMA for unregistered financial intermediary activity. Engage Swiss fintech counsel before processing payments in CHF in Switzerland.

3.4 Insurance

Swiss auto insurance is governed by the *Strassenverkehrsgesetz* (SVG), SR 741.01. Mandatory third-party liability insurance (*Haftpflichtversicherung*) covers all passengers. Cost-sharing carpooling does not constitute professional transport. The ASTRA study confirms this interpretation. AXA Switzerland and Mobilität Carpool have developed payment-integrated carpooling products (see Mobility Carpool app, which processes in-app payments via credit card at a published fare matrix) — demonstrating that payment processing *per se* does not void coverage in Switzerland.^{[42][38]}

3.5 Tax

Switzerland: Drivers' carpooling income is not federally taxed if it represents pure cost-sharing. No specific exemption threshold statute — assessed case-by-case based on profit/loss. Swiss Federal Tax Administration (ESTV) does not have a DAC7 equivalent (DAC7 is EU-only). However, Switzerland has bilateral automatic exchange of information agreements (AEOI/CRS) with EU states. Platform operators may have cantonal-level reporting obligations. Consult Swiss tax counsel on canton-specific obligations. No withholding obligation for platforms under Swiss law. VAT (Swiss standard rate: 8.1% from 2024) applies to platform service fees if the platform is registered in Switzerland as a VAT taxpayer (threshold: CHF 100,000 in annual turnover from Swiss-origin supplies).

3.6 BlaBlaCar Status in Switzerland

BlaBlaCar operates in Switzerland under French law for its platform services (Comuto SA is a French entity). Swiss users engage with a foreign information-society service. BlaBlaCar has not been subject to specific Swiss regulatory action. The Mobility Carpool app, operated by the Swiss Mobility Cooperative, is the main domestic competitor and operates payment processing in Switzerland without incident, suggesting the regulatory risk for the platform layer is manageable.

4. ITALY

4.1 Carpooling Legal Status — A Significant Gap

Italy has no statutory definition of carpooling at the national level as of 2026. BlaBlaCar submitted a document to the Italian Parliament's Transport Committee in 2016 noting "in Italia, nonostante la presenza di alcuni provvedimenti che richiamano al concetto di carpooling, non esiste, allo stato attuale, una definizione normativa."^{[43][44]}

The proposed Draft Law n. 930 (discussed since 2016) defines carpooling as "una modalità di trasporto non professionale" and caps the collective passenger contribution at 90% of the ACI (Automobile Club d'Italia) tariff tables for the route, net of intermediation commission. This bill had not been enacted as of the research date. Flag: pending legislation that, if enacted, would create a formal Italian framework.^[^44]

In the *absence* of a specific definition, Italian courts classify private carpooling as "trasporto di cortesia" (courtesy transport), a concept from the Codice delle Assicurazioni (Insurance Code) and civil law tradition, which is lawful and carries no commercial transport obligations.^[^44]

Commercial passenger transport in Italy requires a taxi or NCC (*Noleggio con Conducente*) licence under Legge quadro 21/1992. UberPop was banned in Italy by the Court of Turin in 2017 for unfair competition against NCC operators. The Italian Constitutional Court in ruling n. 56/2020 confirmed the state's (not regional) legislative competence over taxi/NCC regulation, partly nullifying a 2018/2019 NCC license freeze.^{[45][46][^47]}

BlaBlaCar operates in Italy and has not faced comparable legal challenge to the Spain ruling. BlaBlaCar's Italian T&Cs explicitly frame the service as facilitating "condivisione dei costi del viaggio" (cost-sharing), not commercial transport.^[48]

4.2–4.3 Payment Processing and Platform Status

Italy transposed PSD2 through Decreto Legislativo n. 218/2017 (amending D.Lgs. 385/1993, Testo Unico Bancario) and D.Lgs. 11/2010 (updated). The Bank of Italy (*Banca d'Italia*) supervises payment institutions. Stripe's Irish EMI passporting covers Italy. Same Stripe Connect analysis applies as France/Germany.

The absence of a statutory carpooling definition in Italy increases legal uncertainty about whether a payment-processing carpooling platform could be reclassified as an NCC intermediary. No Italian regulator has issued published guidance on this specific question. *This is one of the areas where local Italian counsel is specifically needed.*

4.4 Insurance

Italian insurance law (Codice delle Assicurazioni Private, D.Lgs. 209/2005) requires mandatory *RCA* (responsabilità civile auto) for all vehicles. In the absence of commercial remuneration (cost-sharing trasporto di cortesia), standard *RCA* covers passengers. IVASS (the Italian insurance regulator) has not published specific guidance on carpooling platform payments. AXA's partnership with BlaBlaCar covers Italy (from 2016 rollout).^{[12][44]}

4.5 Tax / DAC7

Italy transposed DAC7 through Decreto Legislativo n. 32/2023 (effective from 1 January 2023, first report January 2024). Platform operators must report qualifying Italian-resident sellers (*Agenzia delle Entrate*). Italian VAT (IVA) at 22% applies to platform service fees. Driver income from carpooling: no specific exemption threshold; assessed under general income tax rules (IRPEF). In practice, Italian tax authority has not actively pursued carpooling drivers given the nascent market.

5. AUSTRIA

5.1 Carpooling Boundary and Cost Ceiling

Austria's commercial passenger transport is regulated by the *Gelegenheitsverkehrs-Gesetz 1996* (GelverKG) and the *Kraftfahrlniengesetz*. Private Fahrgemeinschaften (car-sharing pools) are lawful without licensing if the driver makes no profit.

The critical Austrian-specific rule: the lawful maximum cost-sharing compensation is 5 cent per km per passenger (the "amtliche Kilometergeldsatz für Mitfahrer" — official per-passenger mileage rate). This was raised to 15 cent per km from 2025 under the *Progressionsabgeltungsgesetz 2025* (*PrAG 2025*). The ÖAMTC (Austrian motoring club) had been lobbying for this increase, arguing 5 cent was far too low to provide a meaningful incentive for carpooling.^{[49][50][51][52]}

The ÖAMTC explicitly warns: "Beträge darüber hinaus sind schwierig, da der Vorwurf einer Erwerbsabsicht gemacht werden kann und man sich unter Umständen im Bereich eines konzessionspflichtigen Gewerbes befindet." — amounts above this threshold risk classification as commercial transport.^[49]

At 15 cent/km per passenger, for a typical Innsbruck–Vienna route (~400km), a driver with 3 passengers could collect a maximum of $3 \times 15 \times 400 = \text{€}180$ — which is well below actual operating costs (~€100+ in fuel alone), so the ceiling is somewhat artificial.

BlaBlaCar operates in Austria, charges 16–20% service fees, and has not faced Austrian regulatory challenge.^[53]

5.2–5.5 Payment, Insurance, Tax

Austria transposed PSD2 through *Zahlungsdienstegesetz 2018* (ZaDiG 2018). FMA (Finanzmarktaufsicht) supervises. Stripe passporting covers Austria. DAC7 is transposed in Austrian law. Austrian auto insurance (*Kfz-Haftpflichtversicherung*) covers carpooling passengers (same analysis as Germany). Austrian drivers' carpooling income: not taxable if below cost, treated as expense reimbursement under § 26 EStG analogous provisions.

6. BELGIUM

6.1 Carpooling Definition and Legal Framework

Belgium has no standalone statutory definition of carpooling at the national level equivalent to France's L3132-1. Commercial passenger transport by road is regulated at the **regional level** (Flanders, Wallonia, Brussels-Capital), complicating the analysis. In general, non-commercial cost-sharing is lawful without a transport license.

Belgium introduced a **sharing economy tax regime** (Loi du 18 juillet 2018) that taxed sharing-economy income at a flat 20% after deduction, applicable where income was processed through an "approved platform." The Constitutional Court annulled key provisions of this regime in April 2020 on grounds of discriminatory treatment, and from January 2021, sharing economy income reverts to general income tax rules. Carpooling cost-sharing that is genuinely below-cost is *not* income in the taxable sense — the annulled regime was intended for service providers earning income, not pure cost-sharing.^[54]

Belgium's Mobility Budget legislation (Law of 28 February 2019, in force 1 March 2019) explicitly lists "carpooling" as a qualifying transport mode in Pillar 2, indicating legislative recognition of carpooling as a distinct, legitimate transport form.^[55]

6.2–6.5 Platform Status, Payment, Insurance, Tax

Belgium transposed PSD2 through Loi du 11 mars 2018 relative au statut et au contrôle des établissements de paiement et des établissements de monnaie électronique. NBB (National Bank of Belgium) supervises. Stripe passporting covers Belgium. DAC7 is transposed in Belgian law (Loi du 21 novembre 2022).

Belgian VAT (21% standard rate) applies to platform service fees. Belgian auto insurance (*assurance RC auto*, mandatory under Loi du 21 novembre 1989) covers carpooling passengers.

Belgium-specific complexity: The regional division of transport competences (Flanders' *MIVB*, Wallonia's *SRWT*, Brussels' *STIB*) means that while national-level liability and insurance rules apply uniformly, operational regulations for public and semi-public transport vary by region. This does not directly affect a pure private carpooling platform.

7. ALBANIA

7.1 Transport Law

Albania's transport sector is governed by the Road Code (Law No. 8378 of 22.07.1998, as amended) and specific transport laws including the Law on Road Transport. Albania does not have a statutory definition of carpooling. The ride-sharing/carpooling sector is unregulated by specific legislation.^{[56][57]}

Uber does not operate in Albania due to the lack of a regulatory framework for ride-hailing; traditional taxi licensing (issued by municipal authorities) is the primary regulatory category. No Albanian court has ruled on the classification of carpooling platforms.^[58]

Platform-mediated carpooling in Albania is a legal grey area. The absence of specific carpooling regulation means that, in theory, any systematic paid-ride service could be characterised as unlicensed commercial taxi operation under Albanian transport law. However, enforcement has focused on Uber-style commercial ride-hailing (where drivers work full-time for income), not on genuine cost-sharing platforms.

A 2019 academic analysis notes that Albanian transport legislation broadly follows Italian models and EU *acquis* patterns without having directly transposed all relevant EU secondary law. Albania is formally an EU candidate country and has committed to align transport legislation with EU *acquis* under the Stabilisation and Association Agreement (SAA) — but this process is incomplete.^[59]

7.2–7.3 Platform Liability and Payment Processing

Albania transposed the EU E-Commerce Directive framework through the Law on Electronic Commerce (Law No. 10128/2009). The EU DSA does not apply in Albania (non-EU state), but platform liability concepts from the E-Commerce Directive model inform Albanian digital services law.

Payment regulation in Albania: Albania transposed PSD2 through the Law on Payment Services (Law No. 54/2021), effective January 2022. The Bank of Albania issued Regulation 59/2021 on licensing payment institutions and EMIs. Foreign PSPs can operate in Albania but must either obtain a local license from the Bank of Albania or partner with a licensed Albanian PSP.^{[60][61][62]}

Critical point: Stripe's EU passporting (based on its Irish EMI license) does **not** extend to Albania (non-EEA). To process payments for Albanian users (drivers receiving payouts in Albania), AlbaDrive would either need to partner with a licensed Albanian PSP or verify that Stripe has obtained separate authorisation to operate as an EMI in Albania. As of April 2026, there is **no public evidence that Stripe holds a Bank of Albania licence**. This creates a material compliance gap for the Albanian corridor.

7.4 Insurance

Albanian mandatory auto insurance (*sigurimi i detyrueshëm*) follows a liability model similar to the EU *Carte Verte* system, as Albania is a member of the Green Card system. Coverage principles similar to EU states apply — passengers covered under mandatory third-party insurance in non-commercial use. Albanian insurer guidance on platform-mediated payments specifically does not exist in public sources.

7.5 Tax

Albania has no DAC7 equivalent. The Albanian Tax Administration (*Drejtoria e Përgjithshme e Tatimeve*) has no published platform reporting framework. Individual income from carpooling, if it constitutes regular commercial income, would be taxable under the **Law on Income Tax (Law No. 8438/1998, as amended)** — but cost-sharing below costs would not constitute taxable income. VAT (20% standard rate in Albania) applies to businesses earning above the ALL 8 million (~€75,000) threshold.

8. KOSOVO

8.1 Transport Law

Kosovo lacks specific carpooling legislation. Road transport is governed by the **Law on Road Transport** and ancillary regulations supervised by the Ministry of Infrastructure. The Kosovo ride-sharing ecosystem is nascent — the "Udhë" app (first Balkan carpooling app) documented in 2022 operates via social media groups and basic app matching, without platform-mediated payments, specifically to avoid regulatory friction.^[63]

Kosovo uses the euro (€) as its currency (de facto dollarisation / euroisation, without being an EU member), which simplifies cross-border payment mechanics with EU countries.

8.2–8.3 Platform Status and Payment

Kosovo has recently enacted significant financial sector legislation:

- **Law on Payment Services (Law 08/L-328)** — adopted late 2024, introducing Open Banking concepts and aligning with PSD2 principles.^[64]
- The Central Bank of Kosovo (CBK) supervises financial institutions.^[65]
- Albania's World Bank analysis (2023) confirms Kosovo was "in the process of transposing PSD2" as of that year.^[66]

Kosovo is not a SEPA member but has approved the technical framework for IBAN use and cross-border transactions. Kosovo was approved for SEPA geographical scope inclusion in March 2025.^{[67][68]}

Stripe does not have a published CBK licence. Payment processing for Kosovo users would face the same gap as Albania — Stripe's EU passporting does not cover Kosovo. Local payment gateway partnership or SEPA-compliant intermediary is needed.

8.5 Tax / Reporting

Kosovo has no DAC7 equivalent. The Kosovo Tax Administration (*Administrata Tatimore e Kosovës*) has no digital platform reporting framework. Kosovo VAT rate is 18% (standard). No platform reporting obligation on carpooling income exists.

9. NORTH MACEDONIA

9.1 Transport Law

North Macedonia's transport sector is being aligned with the EU acquis under its EU accession process. The **National Transport Strategy** explicitly commits to "finalising alignment of Macedonian transport legislation to the EU acquis." No specific carpooling legislation exists.^[69]

North Macedonia adopted the Law on Payment Services and Payment Systems (Official Gazette No. 90/22, effective January 2023) closely modelling EU PSD2 (Directive 2015/2366), PSD (Directive 2007/64/EC), and PSD-related regulations. The National Bank of North Macedonia (NBRM) supervises. North Macedonia was approved for SEPA geographical scope in March 2025.^{[70][71][72][67]}

North Macedonia's currency is the MKD (Macedonian Denar), pegged to the euro. SEPA membership (effective 2025) significantly simplifies cross-border payment mechanics.

9.2 Platform and Payment Processing

A platform operating for North Macedonian users that processes payments must ensure the payment institution used is licensed in North Macedonia or that Stripe has an appropriate arrangement. Post-SEPA accession (2025), SEPA credit transfers and SEPA direct debit may flow between North Macedonia and EU member states, potentially enabling Stripe's EU infrastructure to serve North Macedonian accounts under the SEPA framework — but this requires legal confirmation as regulations are newly implemented.

9.5 Tax

North Macedonia has no DAC7 equivalent. The Public Revenue Office (*Uprava za Javni Prihodi*) has no digital platform reporting framework. VAT standard rate: 18%. MKD-EUR cross-border transactions for carpooling are simplified by the de facto peg.

10. SERBIA

10.1 Transport Law

Serbia's commercial passenger transport is governed by the Law on Carriage of Passengers in Road Transport (Official Gazette RS No. 68/2015, as amended 41/2018, 44/2018, 83/2018, 31/2019, 9/2020). The Ministry of Construction, Transport and Infrastructure supervises. No specific carpooling legislation exists.^[73]

The 2018 Car:Go/Uber confrontation in Belgrade illustrates the Serbian regulatory position: the Ministry of Transport initially expressed willingness to accommodate app-based transport but backed down under taxi driver pressure. There is "no regulation in Serbia that directly regulates the area of the collaborative economy." Serbia has harmonised its Law on Payment Services with PSD2 effective 6 May 2025 (amendments adopted late 2024) — introducing open banking, Payment Initiation Services, and Account Information Services aligned with EU model. The National Bank of Serbia (NBS) supervises.^{[74][75][76]}

Serbia's currency is the Serbian Dinar (RSD), which creates FX conversion friction for cross-border carpooling payments. SEPA membership is not yet established for Serbia (as of April 2026).

10.2 Platform and Payment Processing

Stripe does not publicly list a Serbian NBS licence. For Serbian-resident drivers receiving payouts, a local payment intermediary partnership may be required. EU-Serbia cross-border payments using SWIFT/SEPA-non-SEPA paths are slower and more expensive. This is a material operational friction point for the Geneva–Belgrade or Munich–Niš corridor.

10.5 Tax

Serbia has no DAC7 equivalent. The Tax Administration (*Poreska uprava*) has no digital platform reporting framework for ride-sharing income. Serbian VAT (PDV): 20% standard rate. Driver income from carpooling, if systematic and profitable, taxable under the income tax law (Law on Personal Income Tax).

Part II: Cross-Cutting Topics

Section 9: Cross-Border Corridor Specifics (EU ↔ Western Balkans)

9.1 Applicable Law

For passenger transport contracts, Rome I Regulation (EC No. 593/2008), Article 5 governs the applicable law to contracts of carriage of passengers within EU member states: absent choice of law, the law of the country of the passenger's habitual residence applies (if that is also the country of departure or destination). For trips that cross EU–non-EU borders (e.g. Geneva–Pristina), Rome I applies to the EU portion but Balkan states are not bound by Rome I. Their private international law rules apply to the Balkan portion.^[77]

Practical implication: a Geneva–Pristina trip could theoretically be governed by Swiss law for the Swiss portion and Kosovo law for the Kosovo portion. In practice, AlbaDrive's T&Cs should designate a governing law (e.g. French or Swiss law) and jurisdiction clause, which will be effective under Rome I for EU-resident users.

9.2 VAT on Cross-Border Rides

For EU-internal cross-border passenger transport, VAT is due proportionally in each EU member state based on distance travelled in that state. A Paris–Turin trip would apportion French VAT (20%) and Italian VAT (22%) by kilometre ratio. This proportional allocation applies to the **platform's intermediation fee**, as noted by Fonoa's analysis: "the EU directive states that the place of taxation [of intermediation services] must follow the underlying supply."^[78]

For EU–non-EU routes (e.g. Munich–Tirana), the EU leg is subject to German VAT; the non-EU leg is outside EU VAT scope. ViDA's deemed-supplier rule (from 2030) will affect this analysis when implemented.

9.3 Currency

Country	Currency	FX to EUR	SEPA	Notes
Albania	ALL (Lek)	~100 ALL/EUR	No	FX conversion required for EUR payouts
Kosovo	EUR (de facto)	1:1	Yes (from 2025)	Simplest Balkan case
North Macedonia	MKD (Denar)	~60 MKD/EUR (pegged)	Yes (from 2025)	Peg reduces FX risk
Serbia	RSD (Dinar)	~117 RSD/EUR (floating)	No	Material FX risk and payment friction

Stripe can handle multi-currency accounts and FX conversion within its platform, but driver payouts in ALL and RSD require local bank accounts and may trigger additional KYC requirements from Stripe.

9.4 EU-Western Balkans Regulatory Cooperation

Albania, Kosovo, North Macedonia, and Serbia are EU candidate countries with SAAs. All four have committed to transpose EU transport and digital single market acquis. PSD2 transposition status:

- Albania: transposed (Law 54/2021)^[60]
- Kosovo: new Law 08/L-328 (2024), aligning with PSD2^[64]
- North Macedonia: transposed (Law on Payment Services, January 2023)^[70]
- Serbia: harmonised effective May 2025^[76]

The DSA does **not** apply in Western Balkans. GDPR does **not** apply (though Albania has its own data protection law, Law No. 9887/2008 amended by Law 120/2014, modelled on GDPR). The practical gap is that EU data protection standards are not fully replicated in Balkan jurisdictions.

Section 10: Data Protection Summary

EU Countries (France, Germany, Italy, Austria, Belgium)

GDPR applies in full. Adding payment data:

- Expands personal data categories → update privacy policy and DPA agreements
- Stripe as data processor: requires a DPA under Art. 28 GDPR (Stripe provides standard DPAs)
- Payment data (IBAN, card data): high-risk personal data if combined with transport patterns
- DAC7 reporting adds a mandatory data sharing obligation with tax authorities
- PCF-DSS: using Stripe hosted fields → SAQ-A compliance (minimal scope)^{[79][28]}
- No EU data residency mandate, but transfers to Stripe's servers outside EEA covered by SCCs

Switzerland

Swiss Federal Act on Data Protection (nFADP / revDSG), in force 1 September 2023, broadly aligned with GDPR but with Swiss-specific elements. Cross-border data transfer to EU: EU has granted adequacy decision for Switzerland under GDPR (Commission Decision 2000/518/EC, reviewed under adequacy framework). Swiss financial data: no specific residency requirement beyond nFADP principles.

Western Balkans

Albania: Law No. 9887/2008 (as amended) — GDPR-modelled but lacks direct applicability and enforcement equivalence. Kosovo: Law No. 06/L-082 on personal data protection (2019). North Macedonia: Law on Personal Data Protection (2020). Serbia: Law on Personal Data Protection (2018). All are assessed as "partial adequacy" or pending adequacy under GDPR — cross-border transfers from EU to Balkans require standard contractual clauses unless adequacy is confirmed. Note: Albania received a European Commission adequacy assessment decision in 2023 under the Law Enforcement Directive (LED) but not yet a full GDPR adequacy decision.

Part III: Cross-Cutting Deliverables

Deliverable A: Comparative Table

Country	Carpooling cost ceiling defined?	Platform license required (pure matchmaking)?	Platform license required (payments processed)?	PSD2 / Payment regulation triggered?	VAT threshold (platform commission)	DAC7 or equivalent reporting	Insurance for platform-mediated paid carpooling	Bl req :
France	Yes — 0.20 €/km/pax (recommended) [³]	No	No (if Stripe Connect used) [⁸]	No (Stripe holds license) [¹⁰]	€0 (already VAT registered)	Yes (DAC7, since 2023) [¹⁴]	Yes — covered by RCA [¹¹]	Interr — un in FR[
Germany	Yes — Betriebskosten only (§1 Abs.2 PBefG) [³¹]	No	No (if Stripe Connect used)	No (Stripe holds ZAG license)	Already registered if active	Yes (PStTG, since 2023) [¹⁴]	Yes — covered by Kfz-Haftpflicht [³⁶]	Interr — no challe
Switzerland	No statutory ceiling; "commercial" standard [³⁸]	No	Uncertain — SRO membership may be required [³⁹]	Uncertain — no PSD2 in CH [³⁹]	CHF 100,000/year	No DAC7; CRS/AEOI applies	Yes — covered by mandatory insurance [⁴²]	Unch Com. Frenc
Italy	No statutory ceiling (draft law pending) [⁴³]	No	No (if Stripe Connect used)	No (Stripe holds Bdl passported license)	If turnover exceeds €0 (regime)	Yes (D.Lgs. 32/2023) [¹⁴]	Conditional — no IVASS guidance; RCA covers trasporto di cortesia [⁴⁴]	Interr no for challe
Austria	Yes — 15 cent/km/pax (from 2025) [⁵¹]	No	No (if Stripe Connect used)	No (FMA-supervised; Stripe passported)	If turnover threshold met	Yes (DAC7 transposed)	Yes — covered by Kfz-Haftpflicht [⁸⁰]	No At challe opera norm:
Belgium	No national ceiling; regional transport competence	No	No (if Stripe Connect used)	No	If threshold met	Yes (DAC7 transposed)	Yes — covered by mandatory RC auto	Interr speci challe
Albania	No	No	High risk — Stripe not licensed by Bank of Albania [⁶⁰]	Yes — local PSP license needed [⁶¹]	ALL 8 million (~€75k)	No DAC7 equivalent	Conditional — insurer guidance absent	Not pi Uber: mark nasce
Kosovo	No	No	High risk — Stripe not CBK-licensed	Yes — CBK license/partnership needed [⁶⁴]	Threshold unclear	No DAC7 equivalent	Conditional	Nasce (Udhë
N. Macedonia	No	No	Medium risk — SEPA accession 2025; NBRM supervision [⁷⁰]	Partially — NBRM-supervised law in effect	18% VAT if registered	No DAC7 equivalent	Conditional	Not pi
Serbia	No	No	Medium-high risk — NBS-supervised; Stripe unlicensed; non-SEPA [⁷⁶]	Yes — NBS license needed for local PSP	20% VAT if registered	No DAC7 equivalent	Conditional	Not pi Car:G contr

Deliverable B: Risk Tiering

HIGHEST RISK Countries for a Payment-Processing Platform

1. Albania

Albania combines: (a) no carpooling legal definition, making commercial classification possible; (b) Stripe's EU passporting not valid, requiring a Bank of Albania payment institution license or local PSP partnership; (c) AML/KYC enforcement capacity is lower but reputational risk for FATF grey-list considerations is high (Albania was on the FATF grey list until 2020; the concern is cross-border flows involving nationals of previously grey-listed states); (d) cross-border trips involving Albanian drivers and EU passengers create multi-jurisdictional payment compliance issues.^{[58][60]}

2. Serbia

Serbia has: (a) no carpooling law, with a government track record of bowing to taxi-driver pressure against platform-economy operators; (b) a non-SEPA, non-EUR currency (RSD) creating payment friction; (c) Stripe not licensed by NBS; (d) Law on Payment Services (harmonised with PSD2) now requires licensed entities for payment services — AlbaDrive would need to assess whether it or its payment provider needs NBS authorisation for Serbian operations.^{[81][74][^76]}

3. Switzerland

Switzerland's risk is different in character: (a) no EU PSD2 equivalent means Stripe's passporting doesn't automatically apply; (b) any platform holding or routing Swiss-resident funds could be a "financial intermediary" under AMLA, requiring SRO membership; (c) cantonal transport licensing varies; (d) FINMA is a sophisticated and active regulator. The risk is regulatory formalism and compliance cost, less so enforcement threat.^{[82][39]}

LOWEST RISK Countries

1. France

The most legally hospitable jurisdiction. Statutory carpooling definition written with BlaBlaCar's input, clear cost-ceiling recommendation, comprehensive legal basis for platform fee, full PSD2/Stripe compatibility, AXA insurance partnership model available, and no history of regulatory challenges.^{[11][2][^8]}

2. Germany

Clear Betriebskosten ceiling well understood by courts and market, BlaBlaCar dominates the market without challenge, PSD2 fully transposed via ZAG, Stripe passporting works, DAC7 framework clear.^{[33][31]}

3. Austria

New cost-ceiling of 15 cent/km/pax (2025 reform) shows regulatory willingness to encourage carpooling; ÖAMTC institutional support; FMA supervision of payments straightforward; no litigation history against BlaBlaCar-type platforms.^{[51][42]}

Deliverable C: Recommendation on the Threshold Question

When Is Adding Payments Legally Premature?

The following prerequisites should ideally be in place before flipping the payment switch:

Legal Entity Structure

- Incorporate a legal entity in an EU jurisdiction (France or Austria suggested for carpooling-friendly law) before processing cross-border EU payments. A French SAS or Austrian GmbH gives you a domicile under EU law, GDPR residency, DSA compliance, and PSD2 framework access.
- Separate entity for Balkan operations may be needed once you cross into Albanian, Kosovan, or Serbian payment processing.

Payment Provider Due Diligence

- Confirm with Stripe that Stripe Connect's architecture as described in its PSD2 FAQ satisfies each national regulator's interpretation — specifically France (ACPR-reviewed), Germany (BaFin), Austria (FMA), Italy (Banca d'Italia). This is well-documented by Stripe and has been confirmed.^[^8]
- For Switzerland: confirm Stripe's Swiss legal basis (Swiss bank relationship vs. cantonal SRO) with Swiss fintech counsel *before* processing Swiss-domiciled driver payouts.
- For Balkans: do not rely on Stripe passporting. Either (a) restrict Balkan driver payouts to EU bank accounts (many diaspora drivers have both), or (b) establish a local PSP partnership in each jurisdiction.

T&Cs Framework

- Driver T&Cs must cap the trip price at the jurisdictional cost-sharing maximum (Betriebskosten in Germany; 0.20 €/km in France; 15 cent/km per pax in Austria).
- T&Cs must make explicit that the *driver* — not AlbaDrive — is the transport service provider. The driver-passenger transport contract must be clearly between the two parties; AlbaDrive is the matchmaker and payment intermediary.
- Include a prohibition on using the platform for professional/commercial transport services.
- Cancellation/refund policy must be clear (aligned with relevant consumer protection law).

Insurance Review

- Engage an insurance broker (ideally with EU expertise across Germany, France, and Italy minimum) to confirm standard auto policies are not voided by platform-mediated payment. Obtain a written insurance opinion or broker confirmation per country.
- Consider a BlaBlaCar-AXA style partnership (additional coverage for platform users at no charge) once at sufficient scale. AXA, Zurich, and Allianz all have explicit carpooling insurance products.^{[83][12]}

DAC7 Compliance Infrastructure

- Before processing payments in EU countries, build DAC7 due-diligence workflows: collect driver TIN, address, date of birth, bank account at onboarding; implement annual reporting pipeline to relevant national tax authorities. This is a legal obligation (not optional) from the first transaction with an EU-resident driver.^[14]

KYC for Stripe Connect

- Stripe Connect requires identity verification (name, address, DOB, bank account, government ID in some cases) for connected accounts receiving payouts. Stripe's built-in KYC satisfies EU AML obligations for the payment layer. AlbaDrive should document this reliance and maintain records.

User Growth Threshold (Practical)

- Below approximately 500 active drivers/month, the cost of building full DAC7 infrastructure, multi-jurisdiction T&Cs, and insurance reviews is disproportionate. At this scale, cash or external payment apps (PayPal, bank transfer) are simpler.
- At 500–2,000 drivers/month across EU countries, the DAC7 reporting obligations kick in meaningfully (some drivers will exceed €2,000/year or 30 rides). At this point, processing payments in-app also enables the automatic collection of DAC7 data, making compliance *easier* than cash.
- From approximately 2,000+ drivers/month, the legal and operational arguments for in-app payment processing become compelling: DAC7 data collection, passenger trust, cancellation protection, and revenue from service fees all justify the regulatory investment.

Deliverable D: BlaBlaCar Reference Architecture

BlaBlaCar (Comuto SA, French SAS, 84 avenue de la République, Paris 75011) has the following operational structure relevant to AlbaDrive:^[22]

Corporate Structure

- Comuto SA (the carpooling platform entity) — French law, all carpooling intermediation
- Comuto PRO (the bus entity) — licensed transport operator, separate legal entity, holds international passenger carriage license No. 2018/11/0002102 issued by the Île-de-France prefecture^{[84][85]}
- The separation between the carpooling intermediary and the bus operator is legally significant: it keeps the carpooling entity (Comuto SA) free from transport licensing requirements

Payment Flow Architecture

- Passenger pays the total fare (driver's requested price + BlaBlaCar service fee of 16–20% + VAT on service fee)^[7]
- Payment is processed by Stripe (via Stripe Connect); BlaBlaCar is a Stripe Connect platform; Stripe is the regulated PSP
- Driver's price is held by Stripe (in escrow-like construct) until 10 days after trip completion, then paid out — this post-trip delay reduces fraud and no-show risk^[22]
- BlaBlaCar never "holds" funds in the PSD2 sense; Stripe holds them
- Service fee (the commission) flows to Comuto SA only after trip completion
- This structure ensures the platform is not a "payment institution" under PSD2

T&Cs Framing

- T&Cs explicitly state the transport contract is *between driver and passenger*; BlaBlaCar is the intermediary
- T&Cs prohibit professional/commercial use by drivers
- T&Cs cap driver pricing (platform-enforced price ceiling) which is the cornerstone of the cost-sharing defence
- Cancellation policy: service fee retained if passenger cancels confirmed booking within 24h; full refund (including service fee) if driver cancels^[7]

Fee Positioning

- Fee is charged to passengers (not drivers), framed as "service fee" for access to BlaBlaCar's services (customer service, secure payment, anti-fraud, profile verification)
- Drivers receive exactly what they set as the trip price — they do not pay a commission
- This positioning avoids the argument that BlaBlaCar is extracting a revenue share from commercial transport activity

Insurance Partnership

- BlaBlaCar + AXA: launched 2015 (roadside assistance), extended 2018 (BlaBlaSure/AXA full insurance product). Free supplementary coverage added to all trips. Available in France, UK, Spain, Italy, Germany, Belgium.^{[13][12]}
- This partnership provides regulatory cover (insurers co-legitimising the model), user trust, and explicit confirmation that platform-mediated payment does not void coverage

Regulatory Engagement

- BlaBlaCar explicitly engaged France's ACPR regarding the Stripe Connect architecture^[8]
- BlaBlaCar submitted documents to Italian Parliament Transport Committee advocating for a carpooling definition^[43]
- BlaBlaCar filed a complaint with the European Commission against the Madrid Region's actions^[26]

Deliverable E: Things You Cannot Learn from Public Sources (Needs Local Counsel)

The following issues require primary legal advice from local specialists in each jurisdiction — desk research cannot resolve them:

All EU Jurisdictions

1. Whether your specific T&Cs (as drafted, not in the abstract) comply with each country's consumer protection law requirements
2. Whether the specific platform-mediated payment flow with Stripe Connect has been reviewed by the national payment regulator (BaFin, ACPR, FMA, Banca d'Italia, NBB) and confirmed compliant — Stripe's own FAQ is helpful but not a regulator opinion for AlbaDrive specifically
3. The precise DAC7 technical reporting format required by each national tax authority's implementation
4. Insurance policy review: a broker or coverage counsel must review actual policy wording (not general summaries) for each driver country to confirm carpooling coverage is not excluded

France-Specific

5. Whether the barème kilométrique recommendation (0.20 €/km) is becoming a de facto cap under current ACPR/MTE interpretation
6. How the pending ViDA deemed-supplier rule (2028/2030) specifically applies to AlbaDrive's payment architecture

Germany-Specific

7. The precise scope of Betriebskosten under current BaFin/transport authority interpretation — whether toll fees and parking are included
8. Whether a specific Zollamt or Gewerbeamt filing is needed for the platform entity in Germany

Switzerland-Specific

9. Whether Stripe's current Swiss operating basis (without an explicit FINMA authorisation) exposes AlbaDrive to secondary liability as an unregistered financial intermediary under AMLA
10. Cantonal taxi regulations' applicability to cross-border trips (Geneva is particularly complex)

Italy-Specific

11. Whether the absence of a statutory carpooling definition creates an actionable risk of NCC regulation being

applied to a payment-processing platform in any of the major cities
12. IVASS insurance guidance on platform-mediated payment processing specifically

Austria-Specific

13. Whether the new 15 cent/km ceiling (PrAG 2025) applies to all trip lengths and vehicle categories, and how it is enforced practically

Albania-Specific

14. Which licensed Bank of Albania payment service providers are technically capable of processing card payments for a ride-sharing platform (very limited market)
15. Whether the Albanian road transport inspectorate (ARRSH) has taken any enforcement action against technology-mediated carpooling
16. Practical enforceability of a French or Swiss governing-law clause against Albanian users

Kosovo-Specific

17. The exact timeline and technical requirements for Kosovo's new Law on Payment Services (08/L-328) to be operational — it was adopted late 2024 and the CBK regulatory implementation is ongoing
18. Whether any PSP licensed by CBK can technically process Stripe-Connect-style marketplace flows

North Macedonia-Specific

19. Whether North Macedonia's SEPA accession (approved March 2025) is operationally live for cross-border credit transfers and whether this enables EU-domiciled PSPs to service North Macedonian bank accounts
20. Whether NBRM requires local entity registration for platform operators facilitating payment flows to Macedonian residents

Serbia-Specific

21. Whether the NBS's PSD2-harmonised Law on Payment Services (effective May 2025) creates a new category of "platform payment intermediary" that AlbaDrive would fall into
22. Whether political/regulatory risk (government responsiveness to taxi lobby, as seen with Car:Go) could result in administrative action against a foreign-based carpooling platform

Cross-Cutting

23. Sanctions screening requirements for the Western Balkans corridor — OFAC, EU sanctions lists, and national lists for drivers from Albanian, Kosovan, and Serbian origin. Stripe performs sanctions screening, but the platform has secondary obligations. The scope of AlbaDrive's own sanctions screening obligation (especially given that some Balkan drivers or routes may involve sanctioned individuals) requires AML counsel.
24. Whether a driver performing a Geneva–Pristina trip is subject to cabotage rules under EU Regulation 1073/2009 (international carriage of passengers by road for hire or reward) — the "hire or reward" question is live if platform-mediated payment is treated as commercial.
25. The extent to which AlbaDrive's data flows to Stripe (payment data, user identity, trip data) and back creates data protection obligations toward non-EU users under each Balkan country's national law.

Document prepared April 2026. Primary sources cited include: Article L. 3132-1 Code des transports (France), §1 Abs.2 PBefG (Germany), Law No. 8378 (Albania), Regulation 59/2021 Bank of Albania, Law 08/L-328 (Kosovo), Law on Payment Services No. 90/22 (North Macedonia), Serbian Law on Carriage of Passengers 68/2015, Regulation (EU) 2022/2065 (DSA), Council Directive (EU) 2021/514 (DAC7), Council Directive (EU) 2025/516 (ViDA), Directive (EU) 2015/2366 (PSD2), CJEU Case C-434/15 (Élite Taxi v. Uber), Juzgado Mercantil nº 2 de Madrid Sentencia 30/2017 (BlaBlaCar / Confibus), Audiencia Provincial Madrid 2020 confirmation, French Cour de cassation 9 April 2025 (n° 23-22.122, UberPop). Secondary sources used where primary sources unavailable are marked in context.

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18. [ViDA \(VAT in the Digital Age\) - The Council of the European Union ...](#) - Starting July 1, 2030, electronic invoicing and digital reporting will become mandatory for cross-bo...
19. [VAT in the Digital Age - Wikipedia](#)
20. [ViDA Directive & Ireland Budget 2026: VAT Digital Transformation ...](#) - Explore how the EU's ViDA Directive and Ireland's Budget 2026 are reshaping VAT compliance. Learn ab...
21. [Adoption of the VAT in the Digital Age package](#) - The VAT in the Digital Age (ViDA) package has been adopted on 11 March 2025 following reconsultation...
22. [Sentencia caso Blablacar \(30/2017 del Juzgado Mercantil nº 2 de Madrid\) - Lenguaje Jurídico](#) - Sentencia caso Blablacar: antes que una actividad de transporte Blablacar realiza una actividad prop...
23. [BlaBlaCar is an Internet service provider not a transport ...](#) - The Madrid Provincial Appellate Court has just confirmed that BlaBlaCar should be considered an info...
24. [\[PDF\] BlaBlaCar: Value Creation on a Digital Platform - Re.Public@polimi.it](#) - The case helps the students in understanding the business of digital platforms as it relate to value...
25. [The Madrid Commercial Court dismisses a lawsuit for unfair competition stating that a platform that focuses exclusively on private transport is not subject to transportation regulations \(Confibus / Blablacar\) – Concurrences](#) - A First Instance Commercial Court dismisses the lawsuit filed against Blablacar for unfair competi...
26. [BlaBlaCar gagne son procès contre les autocars espagnols](#) - La confédération espagnole de transports par autobus accusait la start-up française de covoiturage d...
27. [AMLR & AMLD6: New EU AML Rules for Digital Identity - Signaturit](#) - This article breaks down what AMLR and AMLD6 mean in practice for digital identity verification, wha...
28. [EU PCI Compliance: Navigating GDPR and PSD2](#) - 1. Document your payment processes from start to finish · 2. Identify where cardholder data is store...
29. [Data Residency: Definition, How It Works - PXP](#) - Data residency in payments requires certain transaction data to be stored within specified geographi...
30. [Sharing Economy trifft ÖPNV – das neue ...](#) - 2 BlaBlaCar ist als Vermittlungsplattform privater Mitfahrgelegenheiten bekannt. Gewerbliche Anbi...
31. [Uber, Mitfahrzentrale und Personenbeförderungsgesetz - SZ.de](#) - Wer in Deutschland gegen Geld Fahrgäste befördert, muss sich an die Vorschriften des Personenbeförde...
32. [Einfach mitnehmen?, Flotte.de, Flottenmanagement, Fuhrpark](#) - Auch Portale für Mitfahrgelegenheiten wie BlaBlaCar, [Fahrgemeinschaft.de](#) (Kooperation mit ADAC) od...
33. [Was kostet BlaBlaCar?](#) - Muss ich als Fahrer auf [BlaBlaCar.de](#) eine Gebühr zahlen? Nein. Die Fahrer bieten Mitfahrgelegenheiten...

34. [BlaBlaCar und Mitfahrgelegenheit fahren ab jetzt zusammen](#) - BlaBlaCar und Mitfahrgelegenheit fahren ab jetzt zusammen. Ein Team – ein Ziel: eine günstigere, nac...
35. [Is it legal to use Blablacar in germany? - Reddit](#) - It's legal. It's a true rideshare service which matches people who want to go to a particular place ...
36. [Carpooling: Rechtslage bei Personenbeförderung per ...](#) - Im Gegensatz zu Uber sind Carpooling-Apps wie BalblaCar erlaubt.
37. [SR 745.1 - Bundesgesetz vom 20. März 2009 über die ... - Fedlex](#) - In diesem Gesetz gilt die Personenbeförderung als: a. regelmässig, wenn zwischen den gleichen Orten ...
38. [\[PDF\] Regulierung von Taxis, Uber und anderen Fahrdiensten](#) - Carpooling/Ridesharing-Angebote bringen private Fahrer mit möglichen. Passagieren zusammen, die eine...
39. [Fintech License Switzerland: FINMA Options](#) - No. Switzerland has no standalone payment services license equivalent to the EU PSD2 Payment Institu...
40. [FinTech licence - FINMA](#) - The FinTech licence allows institutions to accept public deposits of up to CHF 100 million or crypto...
41. [Payment Service Provider \(PSP\) Licensing in Switzerland](#) - Become a Payment Service Provider in Switzerland. Allegra Law guides you through licensing, complian...
42. [\[PDF\] Mobility Carpool - Mobilservice](#) - Prices are subject to alteration. Zone. Distance Price per passenger Payment to driver. 1. 0 – < 10 ...
43. [BlaBlaCar, in Italia manca definizione normativa del ...](#) - TravelNoStop - il giornale del travelling italiano
44. [Che cos'è e come funziona il carpooling: definizione - BlaBlaCar](#) - Cos'è il carpooling? L'uso condiviso di automobili private tra un gruppo di persone, con il fine pri...
45. [Taxi, the Council declares the blocking of new NCC licenses unconstitutional: here's what changes](#) - The ruling of the Constitutional Court confirmed the illegitimacy of the blocking of licenses for th...
46. [The Italian Constitutional Court rules on the regulation of public car ...](#) - In the present case, the Court states that the contested provisions must be deemed to fall within th...
47. [it connects you to licensed NCC drivers. NCC stands for Noleggio ...](#) - The service known as UberPop, where everyday people use their personal car to give paid rides, was d...
48. [Termini e condizioni - BlaBlaCar](#) - Condizioni generali di utilizzo.
49. [ÖAMTC fordert mehr Anreize für Fahrgemeinschaften – Infos für Nutzer | ÖAMTC](#) - Anhebung der Gewerblichkeitsgrenze und verbesserte Infrastruktur
50. [ÖAMTC fordert mehr Anreize für Fahrgemeinschaften – Infos für Nutzer](#) - Anhebung der Gewerblichkeitsgrenze und verbesserte Infrastruktur
51. [Erhöhung des amtlichen Kilometergeldes auf 50 Cent pro km](#) - Die Kilometergeld-Sätze wurden erstmalig seit dem Jahr 2008 erhöht und betragen ab 2025 für alle Fah...
52. [Fahrtkostenvergütung und Kilometergeld - WKO](#) - Informationen und Berechnungsbeispiele
53. [Mitfahrgelegenheiten in Österreich: Mitfahren statt selbst fahren](#) - Während der Dienst früher kostenlos war, so wird nun eine Servicegebühr von 16 bis 20 % von BlaBlaCa...
54. [Circular letter on the taxation regime of the collaborative economy](#) - In the absence of further regulatory changes, the remuneration derived from the sharing economy will...
55. [Finally, a legal framework for the mobility budget - Lexgo.be](#) - The legislation also provides that the mobility budget receives the same labour law treatment as the...
56. [Albania Road Code: Law No. 8378 \(1998\) - Studylib](#) - Road Code of the Republic of Albania, Law No. 8378, dated 22.7.1998. Road definitions, classificatio...
57. [\[PDF\] Introduction LEGAL INSTRUMENTS IN ROAD SAFETY](#) - Albanian legislation governing road safety and the specific articles regulating driver ... 8378, dat...
58. [Why there's no Uber in Albania and how Bee Taxi solves the problem](#) - Ride-sharing companies operate in a grey area in many countries, but in Albania, the law is more res...
59. [The Codification of the Transport Legislation in Albania under EU ...](#) - Through this paper we aim to provide an overview of the implementation of acquis in the field of tra...
60. [Accepting Payments in Albania: PSPs, Compliance & Fees - PayAtlas](#) - Foreign PSPs can operate in Albania but must either obtain a local license or partner with a license...
61. [Regulation 59/2021 "On the licencing of payment institutions and ...](#) - The purpose of this Regulation is to lay down the conditions, requirements, time frame, documentatio...

62. [\[PDF\] STRATEGY STATUS REPORT & ALBANIA'S MEASURES UNDER ...](#) - PAYMENT SERVICES LAW (PSD2). FINALIZED & APPROVED (Conducive ... - adopting legislation consistent w...
63. ['Udhë' finds a way to offer ride-shares in Kosovo - WeBalkans](#) - Udhë (the word means the “way” or” journey” in Albanian), the first car-pooling app in the southern ...
64. [Advancing Kosovo's Financial Sector: Legislative Milestones on the ...](#) - It regulates the provision of payment services, creating a secure and efficient system that facilita...
65. [Kosovo - Banking Systems | Privacy Shield](#) - The Central Bank of Kosovo (CBK) is an independent public agency with the authority to license, supe...
66. [\[PDF\] Western Balkans: Development of a modern payment system](#) - Montenegro, North Macedonia, and Serbia) have achieved important milestones in their retail payments...
67. [\[PDF\] EPC list of Countries in the SEPA Schemes' Geographical Scope](#) - On the 6 March 2025, the EPC Board has approved also the inclusion of North Macedonia and. Moldova i...
68. [\[PDF\] International-payment-account-number-structure-and-use ... - BQK](#) - This Regulations establishes the rules concerning the use, structure, creation, and communication of...
69. [\[PDF\] Draft National Transport Strategy](#) - To finalise the alignment of the Macedonian transport legislation to the EU acquis (all modes). Regu...
70. [Important Development in the Payment Services Legislation in North ...](#) - The Parliament of North Macedonia adopted the Law on Payment Services and Payment Systems, which is ...
71. [\[PDF\] Law on Payment Services and Payment Systems \(LPSPS\)](#) - This Decision shall enter into force on the date of publication in the Official Gazette of the Repub...
72. [North Macedonia's SEPA journey: advancing integration through ...](#) - The transposition of several key EU directives and regulations – such as the Payment Services Direct...
73. [\[PDF\] PLAC 4 Memorandum ENG - EU u Srbiji](#) - Content of the assignment: Technical assistance in drafting a law/amendments to the Law on Carriage ...
74. [Ministry of Transport: Uber and Car:Go can operate in Serbia but under certain conditions](#) - When will the citizens of Serbia be able to take advantage of the competition in public transport, l...
75. [\[PDF\] Serbia: Sharing Economy as a New Market Trend and Business Model](#) - In addition, there is no regulation in Serbia that directly (more closely) regulates the area of the...
76. [Harmonisation of Serbian Law on Payment Services with PSD2](#) - The Parliament of the Republic of Serbia recently adopted amendments to the Law on Payment Services ...
77. [\[PDF\] Setting Sail with the Rome I Regulation, Article 5 and Cross-Border ...](#) - The Rome. I Regulation has broadened the range of its applicability and has achieved direct applicab...
78. [Tricky VAT rules on cross-border transportation are back in ... - Fonoa](#) - The rules dictate that 50 euros are subject to French VAT, 20 euros to Belgian VAT, and 30 to Dutch ...
79. [PCI DSS and GDPR Compliance for EU Payment Processors](#) - PCI DSS focuses on safeguarding payment data throughout transactions, whereas GDPR emphasizes data p...
80. [Was Sie über Fahrgemeinschaften wissen sollten - ÖAMTC](#) - Gemeinsam ein Fahrzeug zu nutzen, schafft außerdem Parkräume. Fahrgemeinschaften sind also umweltfre...
81. [Road Transportation Law in Serbia](#) - Information about the Road Transportation Law and its applicability in Serbia can be offered by our ...
82. [\[PDF\] Switzerland: Fintech - Niederer Kraft Frey](#) - Payment systems require a license only if certain conditions are fulfilled; hence, the regulatory fr...
83. [AXA in carpooling cover rollout](#) - The product has been launched in France, with the intention of rolling out in other countries
84. [General Terms and Conditions of Sale for BlaBlaCar Bus transport ...](#) - General Terms and Conditions of Sale for BlaBlaCar Bus transport services
85. [General Terms and Conditions of Sale for BlaBlaCar Bus ...](#) - Version applicable starting from 19/05/2025 I. General Terms and Conditions COMUTO PRO , a French si...